

TENTATIVE RULING FOR SEPTEMBER 4, 2026

Department R12 - Judge Kory Mathewson

Markus Petty v. FEDEX Corporation – CIVRS2601686

Motion(s): (1) Motion to Quash Service of Summons and Complaint for Lack of Personal Jurisdiction; and
(2) Demurrer

Movant(s): (1) Defendant FedEx Corporation;
(2) Defendants FedEx Corporation and Federal Express Corporation

Respondent(s): (1),(2) Plaintiff Markus Petty

Ruling: (1) Motion to Quash is CONTINUED to _____ to permit the limited jurisdictional discovery consistent with the Court’s limitations described.
(2) Demurrer is CONTINUED to _____. The Court GRANTS Leave to Amend the Complaint.

(1), (2) PLAINTIFF to provide Order and give notice.

The Court’s Register of Actions reflects that Plaintiff attempted to file a First Amended Complaint (FAC) on April 17, 2026, that was rejected because an Answer had already been filed. There being no FAC on file affects the demurrer, however, it does not preclude consideration of the motion to quash, which challenges the Court’s personal jurisdiction over FedEx Corp. following service of the original summons and complaint.

(1) MOTION TO QUASH

FedEx Corp. moves to quash for lack of personal jurisdiction, arguing it is a Delaware holding company headquartered in Tennessee, did not employ Plaintiff, and did not control FedEx’s day to day operations or employment decisions.

Plaintiff relies on agency and alter ego theories and alternatively requests limited jurisdictional discovery concerning FedEx Corp.’s role in California employment and safety policies.

General Jurisdiction

The present record does not support general jurisdiction over FedEx Corporation. FedEx Corp. is incorporated in Delaware and maintains its principal place of business in Tennessee. (Waits Decl. ¶ 4.) Its only California employees are three government affairs employees in Sacramento. (Waits Decl. ¶ 6.) Nothing presently before the Court suggests this is the exceptional case in which a corporation is otherwise “at home” in California. (*Daimler AG, supra*, 571 U.S. at pp. 137-139.)

Plaintiff relies on an agency or “representative services” theory based on FedEx’s California operations. Under that theory, a subsidiary’s forum contacts historically could be attributed to a foreign parent where the subsidiary performed services sufficiently important to the parent that, absent the subsidiary, the parent would undertake those activities itself. (*F. Hoffman-La Roche, Ltd. v. Superior Court* (2005) 130 Cal.App.4th 782, 797-798.) That theory does not establish general jurisdiction merely because a subsidiary conducts substantial business in

California. The governing inquiry is whether FedEx Corp.'s own affiliations with California render it essentially at home here. They do not.

Specific Jurisdiction

Plaintiff has not met his burden of establishing specific jurisdiction over FedEx Corp. Brandon Waits, employed by FedEx as a Vice President, Human Resources, and who also serves as Treasurer for FedEx Corp., declares that FedEx maintains its own operations and management personnel, while FedEx Corp. does not participate in the supervision or direction of FedEx employees, application of employment policies, discipline, investigations, disability accommodations, or day to day working conditions. He further declares that FedEx Corp. did not employ Plaintiff or participate in employment decisions concerning him. (Waits Decl. ¶¶ 8-12.)

Plaintiff submitted no declaration or authenticated documentary evidence contradicting that showing. Instead, Plaintiff relies on allegations contained in the purported FAC that FedEx Corp. formulated enterprise-wide employment and safety policies governing the Facility and used FedEx as its California operational instrumentality. Because the FAC was never filed, those allegations are not part of the operative pleading. In any event, allegations in an unverified pleading are insufficient to satisfy Plaintiff's evidentiary burden on a motion to quash. (*Strasner, supra*, 5 Cal.App.5th at p. 222.)

The evidence likewise does not establish a basis to attribute FedEx's California contacts to FedEx Corp. A parent corporation is not subject to jurisdiction merely because its subsidiary conducts business in California; the ownership and oversight ordinarily associated with a parent subsidiary relationship are insufficient. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 541-542.) Plaintiff must instead show either forum related conduct by FedEx Corp. itself or a sufficient basis for treating FedEx's relevant California conduct as that of FedEx Corp.

Plaintiff's alter ego theory also fails for the same evidentiary reason. The asserted common officers and directors, consolidated financial reporting, unified branding, and inequitable result are allegations contained in the purported FAC, not competent jurisdictional evidence. Plaintiff therefore has not established the unity of interest and inequitable result necessary to disregard the entities' separate corporate identities. (*Sonora Diamond, supra*, 83 Cal.App.4th at pp. 538-540.)

Accordingly, Plaintiff has not established specific jurisdiction over FedEx Corp.

Because Plaintiff has not established the threshold contacts necessary for specific jurisdiction, the parties' competing arguments concerning whether the exercise of jurisdiction would be reasonable need not be resolved at this stage. That issue may be addressed, if necessary, following jurisdictional discovery.

Jurisdictional Discovery

Plaintiff alternatively requests a 60-day continuance to conduct limited jurisdictional discovery. A plaintiff seeking to establish personal jurisdiction generally is entitled to an opportunity to conduct discovery concerning jurisdictional facts. (*Goehring v. Superior Court* (1998) 62 Cal.App.4th 894, 911.) Whether to continue a motion to quash for that purpose lies

within the Court's discretion. (*HealthMarkets, Inc. v. Superior Court* (2009) 171 Cal.App.4th 1160, 1173.) A continuance is warranted where the plaintiff demonstrates that the proposed discovery is likely to lead to evidence establishing jurisdiction. (*Automobile Antitrust Case, supra*, 135 Cal.App.4th at p. 127.)

Plaintiff identifies specific discovery concerning FedEx Corp.'s internal organizational structure, employment and workplace safety policies applicable to FedEx's California facilities, and communications between the entities concerning the Chino facility or California operations. Plaintiff also seeks financial consolidation records. These subjects are directed to Plaintiff's theory that FedEx Corp. itself exercised control over employment and safety policies relevant to the claims asserted here.

FedEx Corp. responds that Plaintiff has identified no evidence suggesting discovery would contradict Waits's declaration, did not pursue jurisdictional discovery while the motion was pending, and is merely seeking to uncover a basis for jurisdiction that he has not otherwise established. However, the question is whether Plaintiff has identified a non-speculative avenue of inquiry likely to produce evidence bearing on jurisdiction. He has.

The proposed inquiry into which entity formulated, approved, or directed the employment and workplace safety policies applicable to the Chino facility bears directly on whether FedEx Corp. engaged in forum related conduct connected to Plaintiff's claims. The same is true of discovery concerning the relevant reporting and decision-making relationships between FedEx Corp. and FedEx. Those matters are principally within Defendants' possession and are not facts Plaintiff reasonably could be expected to establish without discovery.

The request is therefore distinguishable from one based only on the hope that some jurisdictional facts may emerge. Plaintiff has identified discrete categories of information tied to the specific jurisdictional issues raised by FedEx Corp.'s evidence.

The discovery, however, should be confined to matters bearing directly on personal jurisdiction. Thus, Plaintiff may conduct discovery concerning: (1) FedEx Corp.'s role, if any, in formulating, approving, directing, or implementing employment, human resources, workplace safety, or operational policies applicable to FedEx's California operations or the Chino facility during the relevant period; (2) the corporate reporting and decision-making relationships relevant to those subjects; and (3) communications between FedEx Corp. and FedEx concerning those policies or operations. However, broad financial discovery concerning consolidated accounting or liabilities is not sufficiently connected to the specific jurisdiction inquiry.

Consequently, the motion to quash is continued to permit the limited jurisdictional discovery described above.

(2) DEMURRER

Defendants FedEx Corp. and FedEx demur to Plaintiff's purported FAC. Both the demurrer and Plaintiff's opposition proceed on the premise that a FAC was filed and is the operative pleading. However, the Register of Actions reflects otherwise. Plaintiff attempted to

file a FAC, but the filing was rejected on April 17, 2026 because Scannell had already answered the original complaint and leave of court was required.

Accordingly, the February 23, 2026 complaint remains the operative pleading. Defendants' demurrer, however, is expressly directed to the FAC, and the parties' briefing addresses allegations contained in that proposed pleading rather than the operative complaint. Plaintiff's opposition likewise repeatedly relies on allegations in the purported FAC.

Under these circumstances, the merits of the demurrer are not properly before the Court. As a remedy, the Court grants Plaintiff leave to file the FAC given the parties have proceeded as if the FAC is on file, no prejudice is demonstrated, and judicial economy warrants it. The hearing on the Demurrer will be continued so the Court may properly review the FAC once filed.

Dated: September 4, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR SEPTEMBER 4, 2026

Department R17 - Judge Kory Mathewson

Louis Richard Ruiz v. Mission Linen Supply – CIVRS2506751

Motion(s): (1) Motion to Compel Arbitration and Stay Proceedings
(2) Demurrer / Stay PAGA claims
Movant(s): Defendant Mission Linen Supply
Respondent(s): Plaintiff Louis Richard Ruiz, individually and on behalf of all others
similarly situated
Ruling: (1) Motion to Compel Arbitration (of Plaintiff's individual claim) is
GRANTED; Plaintiff's representative PAGA claims are STAYED. Status
of Arbitration hearing is set for: March 9, 2027, 9AM, R17.
(2) Demurrer is MOOT.

DEFENDANT to provide Order and give notice.

(1) MOTION TO COMPEL ARBITRATION AND STAY

Plaintiff's Request for Judicial Notice

Plaintiff's request for judicial notice is denied as unnecessary and not relevant as (1) the ruling made in in the Superior Court in the County of Santa Barbara has no bearing on the Court's ruling on this motion; and (2) a First Amended Complaint was filed by Azucena Gallegos Perez against Defendant on December 23, 2024, in the Superior Court in the County of Santa Barbara thereby superseding and making the initial Complaint irrelevant.

FAA Applies

The Agreement includes language stating that it "is an arbitration agreement governed by the Federal Arbitration Act, 9 U.S.C. sections 1 et seq., and evidences a transaction involving commerce." (Champagne Decl. ¶ 3, Exh. A at p. 1.) The Agreement further provides that "Mission Linen reserves the right to lawfully seek enforcement of this Agreement ... under the Federal Arbitration Act..." (Champagne Decl. ¶ 3, Exh. A at p. 3.)

Defendant has made a sufficient showing that the parties expressly agreed that the procedural provisions of the FAA would govern the Agreement. (*Valencia, supra*, 185 Cal.App.4th at pp. 173-174.) Based on the language in the Agreement, the FAA applies. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394; *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 964.)

Enforceable Arbitration Provision

A contract is formed when there are parties capable of contracting who consent to a lawful objective and there is a sufficient cause or consideration. (Civ. Code, § 1550.) For arbitration agreements, an agreement only needs to be found to exist, not an evidentiary determination of its validity. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.) The defendant providing an executed copy of the arbitration agreement satisfies the initial burden. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058-1060 (*Espejo*)). The burden then shifts to the plaintiff to dispute the signature. (*Id.* at p. 1059; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846 (*Ruiz*)). If the plaintiff disputes the signature, then the defendant bears the burden of

authenticating the signature on the agreement, i.e., the signature is the act of the plaintiff. (*Espejo, supra*, 246 Cal.App.4th at p. 1060; *Ruiz, supra*, 232 Cal.App.4th at p. 846.)

Defendant presents the Dispute Resolution Agreement (Agreement) that Plaintiff executed on May 9, 2018. (Champagne Decl. ¶ 3, Exh. A.) Plaintiff offers no challenge to his signature on the Agreement or that the Agreement does not cover the causes of actions alleges in his FAC.

The Agreement also contains class action and PAGA waivers, which provide in part: Class Action Waiver. There will be no right or authority under this Agreement for any dispute to be brought, heard, or arbitrated as a class or collective action (“Class Action Waiver”). Notwithstanding any other clause contained in this Agreement, this Paragraph is not severable from this Agreement in any case in which the dispute to be arbitrated is brought as a class or collective action.

PAGA Representative Action Waiver. There will be no right or authority for any dispute to be brought, heard, or arbitrated as a representative action under the California Private Attorney General Act (“PAGA Representative Action Waiver”).

(Champagne Decl., Exh. A ¶ 7-8.)

With respect to severability, the Agreement states:

Except as provided in paragraph 7, above [“Class Action Waiver”], in the event any portion of this Agreement is deemed unenforceable, the remainder of this Agreement shall be enforceable. If Paragraph 7 [“Class Action Waiver”] or 8 [“PAGA Representative Actions”] is deemed to be unenforceable, Mission Linen and I agree that this Agreement is otherwise silent as to any party’s ability to bring a class, collective, or representative action in arbitration.

(Champagne Decl., Exh. A ¶ 9.)

Plaintiff offers no evidence that he did not sign the agreement or that the agreement does not cover the causes of actions alleges in his FAC.

PAGA is split between individual Plaintiff claim subject to arbitration and non-individual claims that subject to litigation. Class arbitration is permissible but only when “there is a contractual basis for concluding that the party agreed to do so.” (*Stolt-Nielsen S.A. v. Animal Feeds International Corp.* (2010) 559 U.S. 662, 684; *Nelson v. Legacy Partners Residential, Inc.* (2012) 207 Cal.App.4th 1115, 1128.) Furthermore, in arbitration agreements governed by the FAA, class waivers are enforceable. (*Epic Systems Corp. v. Lewis* (2018) 138 S. Ct. 1612, 1616.) When an arbitration agreement does not authorize class arbitration of disputes, case law provides for dismissal without prejudice of the class claims. (*Id.*; *Kinecta Alternative Financial Solutions, Inc. v. Superior Court* (2012) 205 Cal.App.4th 506, 510-11.) Here, the parties have expressly waived class action arbitrations.

Additionally, the FAA recognizes that PAGA may be divided into an arbitrable individual-representative action, i.e., the Plaintiff’s claim as representative of the state, and the non-arbitrable aggrieved employees’ representative claim. (*Viking River Cruises, Inc. v. Moriana*

(2022) 596 U.S. 639, 659-62; *Adolph v. Uber Technologies* (2023) 14 Cal.5th 1104, 1121, 1123 [*Adolph*].) While Plaintiff's individual PAGA portion is arbitrated, the aggrieved employees' PAGA portion is stayed. (*Adolph, supra*, 14 Cal.5th at pp. 1123-24.)

Procedural Unconscionability

Procedural unconscionability concerns the manner in which the contract was negotiated and the party's circumstances at the time of negotiation. (*Kinney v. United HealthCare Services* (1999) 70 Cal.App.4th 1322, 1329.) "[I]n the case of preemployment arbitration contracts, the economic pressure exerted by employers on all but the most sought-after employees may be particularly acute, for the arbitration agreement stands between the employee and necessary employment, and few employees are in a position to refuse a job because of an arbitration requirement." (*Armendariz, supra*, 24 Cal.4th at p. 115.) "Procedural unconscionability focuses on 'oppression' or 'surprise' due to unequal bargaining power. 'Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.'" (*Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 722.)

"When the weaker party is presented the clause and told to 'take it or leave it' without the opportunity for meaningful negotiation, oppression, and therefore procedural unconscionability, are present." (*Szetela v. Discovery Bank* (2002) 97 Cal.App.4th 1094, 1100; *Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 114.) "[T]he adhesive nature of the contract is sufficient to establish some degree of procedural unconscionability." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915.) Courts have found that this element is automatically satisfied if the agreement constitutes a contract of adhesion. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1280-1281.)

Plaintiff contends that the Agreement was a "surprise" because it was buried in a stack of documents. However Plaintiff fails to explain why that made the Agreement inconspicuous. For example, the Agreement includes on its first page a separate heading identifying that document as a "Dispute Resolution Agreement". (Champagne Decl. ¶ 3, Exh. A.) The Agreement consists of 3 separately numbered pages, and its material terms are set forth in separately numbered and labeled paragraphs with readable text. The separately numbered paragraphs are also not themselves unreadable, complex, or replete with statutory references or legal jargon. (Cf. *OTO, supra*, 8 Cal.5th at p. 128 [finding that the agreement contained complex sentences with legal jargon written in "extremely small font"].) Further, based on a review of the Agreement, it is not "unreasonably prolix or complex." (*Davis v. Kozak* (2020) 53 Cal.App.5th 897, 907.) For all these reasons, the Agreement is not procedurally unconscionable based on oppression or surprise in its formation.

Notwithstanding that Plaintiff has failed to show why the Agreement was a "surprise," the present record is sufficient to show that Plaintiff could not opt out of the Agreement. For example, the first line of the Agreement states: "In consideration of my employment by [Mission Linen] and the mutual covenants in this Agreement, Mission Linen and I agree that this [Agreement] will apply to all covered legal claims between Mission Linen and me." (Champagne Decl., ¶ 3, Exh. A at p. 1.) Defendant also fails to explain why the Agreement authorizes an employee of Mission Linen to opt out of its provisions.

For these reasons, and as the parties do not and cannot reasonably dispute that the Agreement requires a signatory employee to arbitrate the claims or disputes described in that document as a condition of employment with Defendant, the present record is sufficient to show that the Agreement is a contract of adhesion. In the employment context present here, the adhesive nature of the Agreement presented as a condition of Plaintiff's employment, alone, is sufficient to establish a "modest degree of procedural unconscionability." (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 243 (*Carbajal*).)

The available evidence and information also suggests that Plaintiff was never informed that he could negotiate the adhesive terms of the Agreement or opt out of arbitration, and that Plaintiff is not a "sophisticated business person." (*Carbajal, supra*, 245 Cal.App.4th at pp. 245, 246 [noting that procedural unconscionability may not exist to the arbitration agreement was negotiable and the employee was sophisticated].)

For these reasons the Court finds that there is a moderate level of procedural unconscionability based on the adhesive nature of the Agreement, Plaintiff's lack of business sophistication, and the ostensible inability of Plaintiff to negotiate or opt out of its terms.

Substantive Unconscionability

"Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246 (*Pinnacle*).) A substantive unconscionability analysis "ensures that contracts, particularly contracts of adhesion, do not impose terms that have been variously described as" "overly harsh", "unduly oppressive" "so one-sided as to 'shock the conscience'", or 'unfairly one-sided'. All of these formulations point to the central idea that the unconscionability doctrine is concerned not with "a simple old-fashioned bad bargain", but with terms that are "unreasonably favorable to the more powerful party." (*OTO, supra*, 8 Cal.5th at pp. 129-130; *Pinnacle, supra*, 55 Cal.4th at p. 246 ["[a] contract term is not substantively unconscionable when it merely gives one side a greater benefit"].)

Plaintiff contends that the Agreement is substantively unconscionable because it includes contradictory material clauses which are not clear and unmistakable, and which forbid Plaintiff from participating in a class or representative action.

Noted above, the Agreement is governed by the FAA. Thus, any waiver of Plaintiff's right to bring a class action appearing in the Agreement is valid and enforceable. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 364 (*Iskanian*), overruled on another ground in *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582-583; *Securitas Security Services USA, Inc. v. Superior Court* (2015) 234 Cal.App.4th 1109, 1123 (*Securitas*) [employee's waiver of right to bring class action claims was valid and enforceable under the FAA]; *Marenco v. DirecTV LLC* (2015) 233 Cal.App.4th 1409, 1420-1421 [rule established by case law that "that certain class action waivers in employment arbitration agreements are invalid under state law -- is preempted by the FAA"].) The Court finds that the Agreement is not substantively unconscionable based on any class action waiver appearing in its provisions.

The Agreement also includes the following provision: There will be no right or authority for any dispute to be brought, heard, or arbitrated as a representative action under the California Private Attorney General Act (“PAGA Representative Action Waiver”). (Champagne Decl. ¶ 3, Exh. A at p. 2, ¶ 8.)

“[A] predispute categorical waiver of the right to bring a PAGA action is unenforceable.” (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1117 (*Adolph*); *Iskanian, supra*, 59 Cal.4th at p. 360 [“the FAA does not preempt a state law that prohibits waiver of PAGA representative actions in an employment contract”].)

It is unclear on what basis Defendant contends that the “PAGA Representative Action Waiver” (the PAGA Waiver) “entirely lawful.” Nevertheless, Defendant asserts that to the extent it is unenforceable, it is severable from the Agreement. Plaintiff simply argues that the PAGA Waiver is not separable from the Agreement.

The question of whether the Agreement prohibits or permits severance of the PAGA Waiver “is one of contract interpretation” which constitutes “an issue of law....” (*Securitas, supra*, 234 Cal.App.4th at p. 1125.)

The Agreement expressly provides that the PAGA Waiver “shall be severable from this Agreement in any case in which (1) the dispute is filed as a PAGA representative action; and (2) a court of competent jurisdiction finds this PAGA Representative Action Waiver is unenforceable. In such instances, the PAGA representative action must be litigated in a court of competent jurisdiction.” (Champagne Decl. ¶ 3, Exh. A at p. 2, ¶ 8.) The Agreement further states that, if the PAGA Waiver “is deemed to be unenforceable, Mission Linen and [Plaintiff] agree that this Agreement is otherwise silent as to any party’s ability to bring a class, collective, or representative action in arbitration.” (Champagne Decl. ¶ 3, Exh. A at pp. 2-3, ¶ 9.)

Though Plaintiff asserts that the Agreement includes non-severable provisions requiring Plaintiff to give up his right to bring a representative action under PAGA, considering the clear and explicit meaning of the express language of the provisions set forth above, the Agreement reflects that the parties intended that, to the extent a dispute is filed as a PAGA representative action and the court determines that the PAGA Waiver is unenforceable, the PAGA Waiver is severable from the remainder of the Agreement.

Here, the Court finds the PAGA waiver is severable as Plaintiff fails to show why the Agreement may not be cured by its removal, nor why the interests of justice would not be served by enforcing the balance of the Agreement by requiring Plaintiff to submit his individual PAGA claims to arbitration and allowing Plaintiff to maintain his non-individual or representative claims in court. (*Adolph, supra*, 14 Cal.5th at p. 1123.) Accordingly, the PAGA Waiver does not render the Agreement substantively unconscionable.

““The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” But they need not be present in the same degree.

“Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114, citations omitted.)

Plaintiff fails to show the agreement was substantively unconscionable or to a degree whereby severance could not cure any issues. Therefore, the Agreement is not unconscionable and arbitration is compelled. Plaintiff’s representative PAGA claims are stayed pending completion of his individual arbitration.

(2) DEMURRER

Defendant has filed the declaration of Christina M. Behrman reflecting compliance with the meet and confer requirements. (Behrman Decl. ¶¶ 2-4.)

In light of the Court’s ruling staying Plaintiff’s representative PAGA claims as part of Defendant’s motion to compel arbitration, the Demurrer is currently moot and will not be considered at this time as Defendant has received the alternative relief that it requested - a stay of the PAGA action via the Arbitration Ruling.

Dated: September 4, 2026

Judge Kory Mathewson